

Tentative Rulings for August 12, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS vs REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

Meet and Confer

Mueller met his statutory burden to meet and confer before filing this motion. (See, Decl. of Matthew S. Gordon [“Gordon Decl.”] at ¶ 5.)

Request for Judicial Notice

The request for judicial notice is denied as it is not relevant to the issues involved in this motion, which is already set for hearing before this court.

On the Merits

C.C.P. § 2017.020 permits the court to limit the scope of discovery “if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” C.C.P. § 2019.030 permits the court to generally issue a protective order if: (1) the discovery “is unreasonable cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive”; or (2) the discovery “is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” A party seeking a protective order must show good cause for issuance of the order by a preponderance of evidence. (*Stadish v. Superior Court* (1999) 71 Cal.App.4th 1130, 1145.)]

Mueller seeks a protective order allowing him to not respond to the 122 RFAs and FROG 17.1 served on him by Plaintiff. RFAs are generally subject to the “Rule of 35.” (C.C.P. § 2033.030(a).) A party may propound more than 35 RFAs if it attaches a declaration of necessity. (C.C.P. § 2033.050.) A declaration of necessity must show that the requests are warranted due to the “complexity or the quantity of the existing and potential issues in the particular case.” (C.C.P. §§ 2033.040, 2033.050.) If this is challenged by a motion for protective order, the propounding party bears the burden of justifying the additional requests. (C.C.P. § 2033.040(b).)

Plaintiff alleges in the SAC that Mueller, in his capacity as Chair of the Chemistry Department and Plaintiff’s direct supervisor, retaliated against him for making numerous safety complaints, and this retaliation included being forced to move labs; being denied paid leave to test for exposure; being required to buy necessary supplies with personal funds; being the subject of false statements and sworn at; being removed from a faculty meeting and certain teaching positions; being denied medical leave; and being denied salary and timely merit reviews, among other things. (SAC at ¶¶ 13, 18, 19, 22, 35-39,

41, 43-45, 53, 64, 67, 82, 83, 113, 114.) The RFAs served on Mueller, while voluminous, appear to seek information relevant to Plaintiff's claims. Specifically, they ask about Mueller's roles at the university; whether, based on training he received, certain or Plaintiff's acts were protected, and certain acts directed at him were adverse personnel actions; the circumstances surrounding various events and safety concerns Plaintiff raised; and how various situations regarding Plaintiff were handled. (See, Gordon Decl., Ex. 1.)

In his declaration supporting additional RFAs, Plaintiff states that he has reviewed all of the requests, none are being propounded for an improper purpose, and all are warranted because:

9. The events underlying this action span more than six years, from approximately 2019 through the present, and involve a complex institutional pattern of conduct by Defendant Mueller in his capacity as Chair of the Department of Chemistry at UC Riverside, in his capacity as Plaintiff's direct supervisor, and in his capacity as an experimental physical chemistry professor with peer-level subject matter expertise.

10. The discovery is necessary to establish a baseline of facts across the multiple distinct categories of Defendant Mueller's conduct at issue in this litigation, including but not limited to:

- a) Conduct during the November 25, 2019 lab walkthrough, including referring to Plaintiff as 'the fucking PI' while Plaintiff voiced safety concerns about asbestos dust release during the planned HVAC renovation work;
- b) Receipt and institutional response to Plaintiff's protected disclosures regarding electrical safety, asbestos contamination, carcinogen exposure, hydrogen handling infrastructure, and other workplace safety hazards under the UC Whistleblower Protection Policy and California Labor Code § 1102.5;
- c) Denial of compensation, salary support, and reimbursement to Plaintiff for losses, effort, and expenditures sustained as a result of the asbestos events in Pierce Hall in July and November 2019 and the subsequent institutional remediation, including but not limited to equipment damage, loss, and discarding;
- d) Decisions concerning Plaintiff's teaching assignments, including the mid-quarter removal of Plaintiff from teaching Chemistry 110B in Winter Quarter 2021 and the subsequent non-reassignment of Plaintiff to comparable courses;
- e) Establishing harassing intent through comparison with his conduct toward similarly situated faculty members;

f) Denial or conditional approval of teaching release, summer salary, and graduate student researcher support during the relocations of Plaintiff's lab from Pierce Hall to Pierce Annex in 2019 and from Pierce Annex back to Pierce Hall in 2021 and 2022; [and]

g) Decisions concerning Plaintiff's institutional review process resulting in the absence or delay of merit advancement for Plaintiff since July 1, 2019, despite the documented record of Plaintiff's research, teaching, and service performance.

11. Defendant Mueller's dual capacity, both as the institutional decisionmaker for many of these matters and as a peer-level subject matter expert in experimental physical chemistry, places within his personal knowledge a wide range of factual and professional propositions that are properly the subject of Requests for Admission to narrow the issues for trial.

(Gordon Decl., Ex. 1, Declaration for Additional Discovery at ¶¶ 6-13.)

This is sufficient for Plaintiff to meet his burden of justifying the RFAs served on Mueller. **Accordingly, the motion is denied.**

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500492	KRAIN vs MOREHEAD	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

All parties are ordered to appear for hearing. Remote appearances are permitted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507156	COOPER vs COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The meet-and-confer was inadequate. The court continues the hearing, requiring a code-compliant meet-and-confer regarding the operative FAC filed on May 6, 2026.

The hearing on the demurrer to the First Amended Complaint ("FAC") filed with the Court on May 6, 2026 is continued to September 8, 2026, at 8:30 a.m.. Defendant is

ordered to ***meet and confer in person, or via phone or videoconference*** with Plaintiff regarding for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet-and-confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 15 days before the continued hearing date set above do one of the following:

- (1) vacate the hearing on the demurrer, and file an Answer;
- (2) file with the court a declaration stating the parties have agreed that Plaintiff will file a stipulation and amended complaint before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 430.41(a)(3).)

No further briefing is permitted.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507291	GONZALEZ vs COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT

Tentative Ruling:

Meet and Confer

Before filing a demurrer, the moving party shall meet and confer, at least 5 days before a responsive pleading is due, in person, by telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§410.41, subd. (a), 435, subds. (a)(1)-(2), emphasis added.) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3), emphasis added.) It is unclear if the parties complied. Though email was exchanged, defense counsel's declaration fails to state whether the parties met and conferred in person, via telephone, or video conference. (Hogoboom Decl., ¶¶4-5.) Of note, on June 4, 2026, this Court set an OSC re: Failure to Meet and Confer for the same defective declaration.

The Court will rule on the demurrer to move the case forward.

Merits – Statute of Limitations – NIED

Defendants contend the NIED claim is time-barred under Code of Civil Procedure section 340.5 because Plaintiffs initiated this suit two and a half years after the claim accrued by July 9, 2023. Defendants argue the FAC does not allege facts sufficient to invoke equitable tolling. Plaintiff maintains the FAC alleges facts to establish equitable tolling, citing *Addison v. State of California* (1978) 21 Cal.3d 313, 319.

A demurrer based on a statute of limitations defense must clearly and affirmatively show that the claim is barred. (*Lockley v. Law Office of Cantrell, Green, Kekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.) “It is not sufficient that the complaint might be barred.” (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.) “To determine the statute of limitations which applies to a cause of action it is necessary to identify the nature of the cause of action, i.e., the “gravamen” of the cause of action. [Citations.] “[T]he nature of the right sued upon and not the form of action nor the relief demanded determines the applicability of the statute of limitations under our code.” (*Hensler v. City of Glendale* (1994) 8 Cal.4th 1, 22-23.)

Code of Civil Procedure section 340.5 governs any claim against a health care provider for the injury or death of a person due to the health care provider’s alleged professional negligence. Section 340.5 creates two separate statutes of limitations, both of which must be met. (*Rose v. Fife* (1989) 207 Cal.App.3d 760, 767-768; see also *Ashworth v. Memorial Hospital* (1988) 206 Cal.App.3d 1046, 1054.) A plaintiff must file his or her Complaint “three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered the injury, whichever occurs first.” (Code Civ. Proc., § 340.5; *Ashworth, supra*, 206 Cal.App.3d at 1054.) “Injury” under this statute means both a “person’s physical condition and its negligent cause. [Citation.]” (*Davis v. Marin* (2000) 80 Cal.App.4th 380, 385.) The one-year statute of limitation period commences when the plaintiff is aware of his/her harm as well as the negligent cause of that harm. (*Rose, supra*, 207 Cal.App.3d at 768; *Hills v. Aronsohn* (1984) 152 Cal.App.3d 753, 759; *Dolan v. Borelli* (1993) 13 Cal.App.4th 816, 823.)

Here, the FAC alleges Minor was born on July 9, 2022, and Gonzalez is Minor’s mother. (FAC ¶¶14, 24.) Both were under Defendants’ care during Minor’s birth. (*Id.* at ¶24.) As a result of Defendants’ negligent delivery and labor of Minor that caused Minor injuries (*id.* at ¶¶16-19, 23), Gonzalez suffered serious emotional distress, which was reasonably foreseeable. (*Id.* at ¶¶23, 26-28, 31.) Based on the foregoing allegations, the one-year deadline to file the instant lawsuit was July 9, 2023. Because the Complaint was filed on December 29, 2025, it is time-barred under Code of Civil Procedure section 340.5. (*Rose, supra*, 207 Cal.App.3d at 768.)

Equitable Tolling. Equitable tolling is a “judicially created, nonstatutory doctrine that suspend[s] or extend[s] a statute of limitations as necessary to ensure fundamental practicality and fairness. The doctrine applies occasionally and in special situations to

soften the harsh impact of technical rules which might otherwise prevent a good faith litigant from having a day in court.” (*Saint Francis Mem. Hosp. v. State Dept. of Pub. Health* (2020) 9 Cal.5th 710, 719; see *California State Univ., Fresno Ass’n, Inc. v. County of Fresno* (2017) 9 Cal.App.5th 250, 268-269.) “Courts draw authority to toll a filing deadline from their inherent equitable powers – not from what the Legislature has declared in any particular statute.” (*Wolstoncroft v. County of Yolo* (2021) 68 Cal.App.5th 327, 339.) Equitable tolling has been applied when an earlier lawsuit is filed in the wrong court or tribunal. (*Friends of Mammoth v. Board of Supervisors* (1972) 8 Cal.3d 247, 269; *Electronic Equipment Express, Inc. v. Donald H. Seiler & Co.* (1981) 122 Cal.App.3d 834, 847, fn. 3.)

In the present case, the FAC alleges that on May 18, 2023, Plaintiffs timely filed a Complaint in Riverside County, Case No. CVRI2302614 (“First Lawsuit”) against the same Defendants named in the instant lawsuit. (FAC ¶¶35-36.) During discovery, Plaintiff retained a pediatric neurologist who concluded that the true nature and extent of Minor’s cognitive and neuro-developmental impairments could not be assessed accurately until the age of four at the earliest. (*Id.* at ¶¶39-40.) Plaintiff, in good faith, discussed with defense counsel the need for additional time to allow minor to develop before being able to conduct further investigation into Minor’s injuries. (*Id.* at ¶41.) The parties submitted their first request ever to continue trial from August 1, 2025 to May 1, 2026 when Minor would be almost 4 years old, but the trial court would only continue trial to September 12, 2025. (*Id.* at ¶¶41-42.) “Following good-faith discussions with defense counsel, a stipulation was prepared to allow Plaintiffs to dismiss the case without prejudice, but allow Vanessa’s claim for emotional distress to be re-filed with [Minor’s] claim without being subject to a statute of limitations defense for Vanessa’s claim...Plaintiffs’ counsel agreed to limit Vanessa’s claim for non-economic damages to the MICRA limits in effect in 2025. However, Defendants later refused to execute the stipulation.” (*Id.* at ¶46.) Thereafter, Plaintiffs dismissed the First Lawsuit, without prejudice, and filed the instant lawsuit on December 29, 2025. (*Id.* at ¶¶48-49.) The elements for application of the doctrine of equitable tolling requires timely notice, lack of prejudice to the defendant, and reasonable and good faith conduct on the part of the plaintiff. (*Addison, supra*, 21 Cal.3d at 319.) Defendants received timely notice given discussions were had regarding Plaintiffs dismissing the First Lawsuit without prejudice to allow Plaintiffs’ claims to be re-filed. Indeed, a stipulation was discussed. As to prejudice and Plaintiffs’ good faith conduct, Defendants fail to explain how it will actually be prejudiced by the Court applying the doctrine of equitable tolling and how Plaintiffs acted in bad faith. The FAC alleges Plaintiff acted in good faith. (FAC ¶46.) Where the facts alleged in the cause of action show the action to be barred by the statute of limitations, “plaintiff must ‘plead around’ the defense, by alleging specific facts that would avoid the apparent defense. Absent such allegations, the complaint is subject to demurrer for failure to state a cause of action.” (Weil & Brown, California Practice Guide: Civil Procedure Before Trial (The Rutter Group) ¶ 6:179, pgs. 6-55.)

Here, the FAC sufficiently pleads facts around the defense of the statute of limitations. Accordingly, the Court overrules the demurrer.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2603209	COUNTY OF RIVERSIDE vs SANDOVAL	MOTION FOR PRELIMINARY INJUNCTION

Tentative Ruling:

The court grants the request to take judicial notice of Exhibits A and B, RCO Nos. 348 and 725, respectively.

The motion for preliminary injunction is granted. However, the court changes the language in the proposed order on the County's ability to inspect the Property for violations upon at least 24 hours' notice, not 12 hours.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2603395	BASURTO vs ALVORD UNIFIED SCHOOL DISTRICT	PETITION FOR ORDER RELIEVING PETITIONER FROM CLAIM PRESENTATION REQUIREMENTS OF GOVERNMENT CODE SECTION 945.4

Tentative Ruling:

The hearing is continued to September 29, 2026, at 8:30 a.m., as the remaining defendant Oak Grove Center, a certified California non-public school has not yet been served with the summons and complaint in this case.